

BRAND DEAL TERMS

This Agreement (the “Agreement”) is made by and between Influenergy LLC (“Company”), and the Brand who has agreed to this Agreement (“Brand”). “Creator” shall refer to any creator who agrees to any Ad Brief and campaign with Brand.

1. **Engagement Details.** Brand agrees to work with certain Creators they shall later approve on the Deliverables outlined in relevant Ad Brief(s) provided by Brand and listed on Company’s website. The Ad Brief (accessible via the designated webpage) shall include, but are not limited to, Deliverables, Price, Revision Requests, Reshoot Requirements, Net Payment Timeline, Usage Rights, and Exclusivity. Brand agrees to abide by these terms to the extent they appear in the Ad Brief.

2. **Intellectual Property & Content Ownership.** The Brand shall own all right, title and interest, (together, the “Intellectual Property Rights”), in and to the content produced in this Agreement. This Agreement is not a sale and does not convey to the Company any rights of ownership in or related to the Brand’s content, or the Intellectual Property Rights owned by the Brand. The Brand’s name, logo, profile, and videos associated with the Agreement are owned by the Brand, and this agreement gives the Company no right or license granted to use them (other than what is expressly permitted in this Agreement). The Company may publicize and advertise that Brand has worked with Company in Company’s marketing materials, and Brand expressly agrees to such usage and publication. Brand also grants a perpetual, royalty-free license to Company to use such content in Company’s own marketing materials.

3. **Payment Terms.** Brand shall remit payment to Brand prior to the execution of any Ad Brief(s). Company shall not be liable for any unpaid amounts due to non-payment by the Brand to any Creators. Brand acknowledges that Company may withhold a percentage of any funds as an operating fee, and such percentage may change from time to time in the sole discretion of the Company. Brand acknowledges that a percentage of funds may also be withheld due to payment platform processor fees, and agrees to such fees being withheld by Company for such purposes.

4. **Term and Termination.** This Agreement shall continue until either party terminates it by providing five (5) days' written notice to the other party or until the completion of the obligations, whichever occurs first. Company reserves the right to terminate this Agreement at its sole discretion, with or without cause, upon written notice to the Brand, effective immediately or as specified in the notice. Provisions of this Agreement that, by their nature, are intended to survive termination shall remain in effect.

5. **Independent Contractor.** Company will be an independent contractor to the Brand. Company will not be subject to direction or control by the Brand in performing this Agreement. Brand is responsible for paying expenses related to furnishing the completed Project under this Agreement. Company will not be eligible for any employee benefits, and

the Brand will not make any tax withholdings on Company's behalf. Company agrees to pay all self-employment and other taxes relating to this Agreement.

6. **Indemnification.** Brand agrees to indemnify, defend, and hold harmless Company, its affiliates, officers, directors, employees, agents, successors, and assigns (collectively, the "Indemnified Parties") from and against any and all claims, demands, causes of action, damages, losses, liabilities, judgments, settlements, costs, and expenses (including, without limitation, reasonable attorneys' fees) arising out of or related to: (a) any breach of this Agreement or the Ad Brief by Brand; (b) any claim that the content created infringes upon, misappropriates, or otherwise violates the rights of any third party, including but not limited to intellectual property rights, privacy rights, or publicity rights; (c) any disputes, liabilities, or claims between Creator(s) and the Brand, including those related to payment, content approvals, or performance obligations; (d) any violation of laws, regulations, or industry standards applicable to the content created under this Agreement; (e) any willful misconduct, gross negligence, or fraudulent acts by the Brand. Additionally, Brand acknowledges that Creators agree to the following:

Creators warrant that their content is original, legally compliant, and does not infringe upon any third-party intellectual property rights. Creator shall indemnify and hold harmless the Company and Brand solely to the extent that (a) the Creator knowingly breaches this warranty or acts with gross negligence, and (b) the resulting damages are directly caused by such breach or conduct. Notwithstanding the foregoing, Creator's total liability under this indemnity shall be capped at the amount of compensation payable to Creator as set forth in the applicable Ad Brief.

7. **Limitation of Liability.** To the maximum extent permitted by law, Company's total liability under this Agreement shall not exceed the total amount paid to Brand under this Agreement. In no event shall Company be liable for indirect, incidental, consequential, or special damages arising out of or related to this Agreement.

8. **Representation & Warranties.** Company represents and warrants that it has full right, power, and authority to enter into this Agreement and to perform all obligations hereunder. Brand represents and warrants that: (a) All content will comply with applicable laws, platform policies, and advertising regulations; (b) Brand has full rights to grant any necessary licenses; (c) Content will not infringe any third-party rights.

9. **Confidentiality.** Brand agrees that any non-public information provided by Social Currant or the Brand, including but not limited to business strategies, marketing plans, financial information, and any other proprietary or confidential materials, shall remain strictly confidential. Brand shall not disclose, share, or use such information for any purpose other than fulfilling obligations under this Agreement, unless required by law. This obligation shall survive termination of the Agreement.

10. **No Waiver.** No failure by either party to exercise any right or remedy hereunder shall be deemed a waiver of such right or remedy, or waiver of such right or remedy with respect to a future occurrence, or a waiver of any other right or remedy hereunder, unless otherwise expressly stated in writing.

11. **Governing Law & Choice of Forum.** This Agreement will be governed and construed under the laws of the State of California without regard to the conflicts of law provisions thereof. The parties hereby submit to the jurisdiction of the state and federal courts in the State of California to resolve any dispute arising out of or resulting from this Agreement. In addition, any dispute, controversy, or claim arising out of or relating to this Agreement, or the breach, termination, or invalidity thereof, shall be settled by arbitration in accordance with the rules of the American Arbitration Association. The arbitration shall take place in California, and the decision of the arbitrator(s) shall be binding and final.

12. **Force Majure.** In no event shall the Company be responsible or liable for any failure or delay in the performance of its obligations hereunder arising out of or caused by, directly or indirectly, forces beyond its control, including, without limitation, strikes, work stoppages, accidents, acts of war or terrorism, civil or military disturbances, nuclear or natural catastrophes or acts of God, and interruptions, loss or malfunctions of utilities, communications or computer (software and hardware) services; it being understood that the Company shall use reasonable efforts which are consistent with accepted practices in the banking industry to resume performance as soon as practicable under the circumstances.

13. **Complete Agreement/Amendment/Severability.** This Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective successors and permitted assigns. This Agreement expresses the entire understanding of the parties hereto with respect to the subject matter hereof and replaces any and all prior agreements, negotiations, and understandings, written or oral, relating to the subject matter hereof. This Agreement shall not be modified or amended except in writing and signed by each party. If any provision of this Agreement is held to be illegal or unenforceable by a court or other tribunal of competent jurisdiction, such provision shall be fully severable from this Agreement, and the remaining provisions of this Agreement shall remain in full force and effect and shall not be affected by the illegal or unenforceable provision or by its severance from this Agreement to the fullest extent possible.

14. **Notices.** All notices hereunder shall be in writing and shall be deemed given as follows: if by email, on the date that such email was sent; if by personal delivery, on the date of such delivery (or addressee's refusal of delivery); if by first class registered or certified mail (postage prepaid, return receipt requested), on the date that is three (3) business days following the mailing date; or if by U.S. Express mail, Federal Express, or another nationally recognized overnight courier service, on the date that is one (1) business

day following the mailing date. Notices shall be addressed to the appropriate party at the address where such party actually receives written notice.

15. **Integration.** This Agreement, along with the Ad Brief, supersedes all prior agreements and understandings (whether written or oral) between the Company and the Brand with respect to the subject matter hereof. To the extent terms in this Agreement differ from the Ad Brief, the Ad Brief shall govern.